



## GAP ANALYSIS &amp; WORDING ENHANCEMENT — INTERNAL

# Full Gap Analysis

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Granular, clause-for-clause and definition-for-definition deficiency / enhancement record for the TMHCC Media & Music Combined wording, with copy-paste-ready wording for every recommendation and a full sub-limit harmonisation table.

**Wordings reviewed**

- TMHCC — Tokio Marine HCC — Media & Music Combined
- Tysers (Zurich) — Tysers “Focus” Combined ‘All Risks’ Media policy
- Yutree (AXA) — Media & Entertainment by Yutree
- Liberty — Liberty Entertainment Combined Policy
- Allianz — Allianz Entertainment ‘Complete’ Policy
- AXA XL — AXA XL Media & Entertainment Combined Corporate (Crisis Management & Special Risks)

*INTERNAL / WORKING DOCUMENT. Separate from the client-facing Coverage Comparison. Every broadening of cover and every sub-limit change is flagged for TMHCC legal / underwriting sign-off.*

*Grounded in the FINAL TMHCC clean wording and the five attached competitor wordings. Figures that cannot be traced to an attached wording are marked CANNOT-DETERMINE / UNCONFIRMED.*

**How to read this document:** This is the internal gap/enhancement record. PART A reports the specific instructed inclusions (verified then actioned). PART B is the granular gap-by-gap analysis with copy-paste-ready wording. PART C is the sub-limit harmonisation table (old → new). Every item shows priority, underwriting impact, sign-off requirement and whether it is implemented (as a discrete tracked change) or parked. Personal Accident and Travel are deliberately excluded.

## A Part A — specific master-wording inclusions (verified, then actioned)

### A1 · Artists' Equipment extension (Section 2)

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|-----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Finding</b>  | ALREADY PRESENT. Section 2 (Property & Equipment) contains an "Artists Equipment" extension under the Technical Equipment extensions, limited to GBP 20,000 per occurrence and in the aggregate. Wording matches the instructed text. |
| <b>Location</b> | Section 2 – Property & Equipment, "Artists Equipment" extension (clean wording).                                                                                                                                                      |
| <b>Action</b>   | No change — confirmed present and correctly placed. NOT duplicated.                                                                                                                                                                   |
| <b>Status</b>   | Confirmed – no change                                                                                                                                                                                                                 |

### A2 · Stock and merchandise (Section 2)

|                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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| <b>Finding</b>  | ALREADY CATERED FOR. (a) "Stock" is a named insured Item: 'Property Insured means Buildings, Contents, Stock, Rent, Information Technology Property and any other Items stated in the Schedule'. (b) The Stock definition expressly includes 'materials in trade, merchandise (including work in progress...)', so merchandise for sale is captured. (c) Exhibits cover expressly includes 'demonstration and sample Stock/merchandise'; and 'all such goods shall be held to be insured... as Stock'. No wording prevents merchandise cover. |
| <b>Location</b> | Section 2 – Property Insured; Stock definition; Exhibits.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Action</b>   | No change — merchandise held for sale is already within "Stock".                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Status</b>   | Confirmed – no change                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

### A3 · Data recovery from old Section 4

|                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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| <b>Finding</b>  | PRESERVED — nothing lost. Old Section 4 (Information Technology) carried the data-recovery treatment as: a 'Breakdown' definition, a 'Data Carrying Materials' definition, an insured event covering Breakdown, and a basis of settlement reading 'replacement of Data Carrying Materials together with reinstatement of data contained thereon; whichever is the lesser to achieve compatibility...'. ALL of this survived into the current wording — the identical definition, insured event and basis-of-settlement wording appears in Section 1 (Business 'All Risks') and again in Section 2 (Property & Equipment). Old Section 4 had NO standalone, separate GBP data-recovery sub-limit — data recovery was met within the IT-property sum insured (cost-based, 'whichever is the lesser'). There is therefore no standalone sub-limit to reinstate. |
| <b>Location</b> | Section 1 and Section 2 – 'Breakdown' / 'Data Carrying Materials' / basis of settlement.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Action</b>   | No change — treatment preserved faithfully; nothing to reinstate (no duplicate created).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>Status</b>   | Confirmed – no change                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

### A4 · Touring / music-activity money (Section 8)

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| <b>Finding</b>  | GENUINE GAP — ADDED. Section 8 (Money) had Sub-Section 1 (Money) + Sub-Section 2 (Personal Assault) + a Loss of Keys extension only, with no extension for money while touring or during music/entertainment activities. A new 'Money – Touring and Entertainment Activities' extension has been added covering money in transit, in temporary storage and at temporary venues/festival sites/box offices in connection with touring, live events, performances and other music/entertainment activities. |
| <b>Location</b> | Section 8 – Money, Sub-Section 1, immediately after the 'Loss of Keys' extension.                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Action</b>   | ADDED as a discrete tracked change. Sub-limit set as SCHEDULE-REFERENCED ('the sum stated in the Schedule against this Extension'). The attached entertainment competitor wordings (Tysers, Yutree) write their Money cover on a SCHEDULE-DRIVEN basis with no fixed 'touring money' figure, so a specific market-highest figure CANNOT BE DETERMINED and has not been invented — underwriting to set the figure.                                                                                         |
| <b>Status</b>   | ADDED (tracked) – figure cannot be determined; underwriting to set                                                                                                                                                                                                                                                                                                                                                                                                                                        |

## A5 · Employee definition — breadth vs Yutree & Tysers

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| <b>Finding</b>  | Multiple Employee definitions exist. The general 'Employee – applicable to Sections 1–11' definition is ALREADY at least as wide as Tysers and Yutree (it covers contract-of-service, labour-master / labour-only sub-contractors, hired/supplied persons, self-employed labour-only, deemed-employment persons, government/work-experience scheme participants, unpaid persons temporarily working, and drivers/operators of hired plant). The Section 14 (Management Liability) and Section 12 (Media) definitions are also broad. The OUTLIER is the Section 13 (Commercial Legal Expenses) definition: 'A worker who has or alleges they have entered into a contract of service with You' — narrower than Tysers (self-employed, hired/borrowed, work-experience) and Yutree (labour-only, self-employed, hired/borrowed, voluntary helper, work-experience, prospective employee). |
| <b>Location</b> | Section 13 – Commercial Legal Expenses, 'Employee' definition.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Action</b>   | BROADENED the Section 13 definition (discrete tracked change, old text deleted / new inserted) to be at least as wide as Tysers & Yutree and consistent with the general Sections 1–11 definition. Tysers (General Definitions, p.9) and Yutree ('Employed person', p.88) verified from the attached wordings. The general S1–11, S12 and S14 definitions already meet/exceed the competitors — left unchanged for internal consistency.                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Status</b>   | BROADENED (tracked) – Section 13 only                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

## A6 · Cyber / Computer System definition consistency (S12 vs S15)

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| <b>Finding</b>  | CONFIRMED INCONSISTENCY. Three different 'Computer System' definitions exist: (1) the property Cyber-Exclusion endorsement near Section 1 (modern, broad LMA-style: 'any computer, hardware, software, communications system, electronic device... owned or operated by the Insured or any other party'); (2) Section 12 (Media) — an older, web/comms-focused definition tied to the Insured's 'electronic communications system, world-wide web site, internet site...' (the narrowest); and (3) Section 15 (CyberGuard) — a modern, broad definition. 'Virus' is defined in S12; 'Data' and the Cyber Act/Incident/Loss triggers are defined in the property endorsement; S15 carries its own broad cyber dictionary. |
| <b>Location</b> | Section 12 – 'Computer System' definition.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Action</b>   | ALIGNED — the Section 12 'Computer System' definition has been replaced (discrete tracked change, old deleted / new inserted) with a broad definition consistent with Section 15 / the property endorsement, expressly stated to be construed consistently with Section 15. Virus (S12) and the cyber triggers were reviewed and are substantively consistent; no further change required. ALL SECTION 12 CHANGES REQUIRE LEGAL/UNDERWRITING SIGN-OFF.                                                                                                                                                                                                                                                                   |
| <b>Status</b>   | ALIGNED (tracked) – SIGN-OFF (Section 12)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

## B Part B — granular gap analysis & bridging

Each gap below is classified and, where it is a genuine deficiency supported by an attached competitor wording, bridged in TMHCC house style as a discrete, individually accept/reject-able tracked change. Personal Accident and Travel are excluded by instruction.

### Gap 1 · Distributors & Purchasers extension (Media Liability)

|                                        |                                                                                                                                                                                                                               |
|----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Extension of PI indemnity to purchasers/co-producers/licensees/distributors of the insured's media material.                                                                                                                  |
| <b>Current TMHCC position</b>          | No equivalent extension in Section 12.                                                                                                                                                                                        |
| <b>Competitor position (cited)</b>     | Tysers PI clause 8.7 extends indemnity to purchasers/co-producers/distributors of the insured's Media Material up to 5x the Limit of Indemnity in the aggregate (verified, Tysers p.57). Yutree/Liberty/Allianz/AXA XL: none. |
| <b>Recommended action</b>              | ADD a Distributors & Purchasers extension capped at five (5) times the Indemnity Limit in the aggregate, with control-of-defence and claims-made/notification conditions.                                                     |
| <b>Exact policy location</b>           | Section 12 – Extensions, after 'Indemnity to Principals'.                                                                                                                                                                     |
| <b>Priority</b>                        | Medium                                                                                                                                                                                                                        |
| <b>Underwriting impact</b>             | Medium — aggregate exposure 5x limit; control via 5x cap, control-of-defence and claims-made notification.                                                                                                                    |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                                                                                                              |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                                                                                                                           |
| <b>Status</b>                          | Implemented (tracked)                                                                                                                                                                                                         |

**Copy-paste wording:** The indemnity provided by Insuring Clause 1. (Indemnity) is extended to apply to any purchaser, co-producer, licensee or distributor of Media Material produced or supplied by the Insured, but only in respect of claims arising from such Media Material and only where the Insured is contractually obliged to provide such indemnity. The Insurer's total liability under this Extension shall not exceed five (5) times the Indemnity Limit in the aggregate during the Period of Insurance for all claims arising from each production of Media Material so purchased, co-produced, licensed or distributed. Cover under this Extension is conditional upon the Insurer retaining the right to conduct the defence and settlement of any such claim, and upon any claim being first made against, and notified to the Insurer by, the Insured during the Period of Insurance.

### Gap 2 · Worldwide / USA-Canada territory option (Media Liability)

|                                        |                                                                                                                                                                                               |
|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Schedule-selectable worldwide (and separately USA/Canada) territory & jurisdiction for Section 12.                                                                                            |
| <b>Current TMHCC position</b>          | Section 12 is governed by the Schedule Geographical Limits and excludes claims brought, or whose governing law is contended to be, outside the Jurisdiction (default worldwide ex-US/Canada). |
| <b>Competitor position (cited)</b>     | Tysers PI/E&O is worldwide with no jurisdiction exclusion (verified). Yutree restricts US/Canada.                                                                                             |
| <b>Recommended action</b>              | ADD an optional, schedule-selectable Worldwide Territory & Jurisdiction extension, with USA/Canada as a separate selectable; default position unchanged.                                      |
| <b>Exact policy location</b>           | Section 12 – Extensions, after 'Distributors and Purchasers'.                                                                                                                                 |
| <b>Priority</b>                        | High                                                                                                                                                                                          |
| <b>Underwriting impact</b>             | High if US/Canada selected — price/sub-limit/higher excess; keep ex-US/Canada as default; confirm reinsurance treaty territory.                                                               |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                                                                              |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                                                                                           |
| <b>Status</b>                          | Implemented (tracked) – optional, default unchanged                                                                                                                                           |

**Copy-paste wording:** This Optional Extension applies only if stated as operative in the Schedule. Where stated as operative, the Geographical Limits applicable to this Section are amended to anywhere in the world and the Jurisdiction applicable to this Section is amended to worldwide, and the exclusions of claims brought, or in which the governing law is contended to be, outside the Jurisdiction shall not apply. Cover in respect of claims brought in, or determined under the laws of, the United States of America or Canada (or any territory or protectorate thereof) applies only if "USA/Canada Jurisdiction" is additionally stated as operative in the Schedule.

### Gap 3 · Journalistic source-protection costs (Media Liability)

|                                        |                                                                                                                                   |
|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Legal costs to oppose a subpoena/court order requiring disclosure of a confidential source.                                       |
| <b>Current TMHCC position</b>          | Not provided.                                                                                                                     |
| <b>Competitor position (cited)</b>     | Tysers PI clause 8.13 funds legal costs to challenge a subpoena requiring disclosure of a source (verified). Yutree/others: none. |
| <b>Recommended action</b>              | ADD a sub-limited source-protection costs extension (counsel's opinion / reasonable-grounds test; insurer consent).               |
| <b>Exact policy location</b>           | Section 12 – additional covers, after 'Costs for Prosecuting Infringement of the Insured's IP'.                                   |
| <b>Priority</b>                        | Medium                                                                                                                            |
| <b>Underwriting impact</b>             | Low — small sub-limit; consent and prospects conditions.                                                                          |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                  |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                               |
| <b>Status</b>                          | Implemented (tracked)                                                                                                             |

**Copy-paste wording:** Up to the sub-limit stated in the Schedule against this Extension, for the reasonable legal costs and expenses incurred by the Insured, with the Insurer's prior written consent, in opposing or responding to any subpoena, court order or other legal compulsion requiring the Insured to disclose the identity of a confidential journalistic source, where such disclosure arises from the Insured's Media Business Services. The Insurer will only provide such cover where, in the opinion of counsel, there are reasonable grounds to oppose disclosure. This cover forms part of and does not increase the Indemnity Limit.

### Gap 4 · Representation costs at investigations/inquiries (Media Liability)

|                                        |                                                                                                                                          |
|----------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Costs of attendance/representation at official examinations, investigations or inquiries.                                                |
| <b>Current TMHCC position</b>          | Provided only via Data-Protection Defence Costs; otherwise absent in S12.                                                                |
| <b>Competitor position (cited)</b>     | Tysers PI clause 8.15 funds representation at official examinations/inquiries up to GBP 25,000 in the aggregate (verified, Tysers p.58). |
| <b>Recommended action</b>              | ADD a GBP 25,000 representation-costs extension (matching the evidenced Tysers figure).                                                  |
| <b>Exact policy location</b>           | Section 12 – additional covers, after 'Costs for Prosecuting Infringement of the Insured's IP'.                                          |
| <b>Priority</b>                        | Medium                                                                                                                                   |
| <b>Underwriting impact</b>             | Low — GBP 25k sub-limit (market-matched to Tysers).                                                                                      |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                         |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                                      |
| <b>Status</b>                          | Implemented (tracked)                                                                                                                    |

**Copy-paste wording:** Up to a maximum of GBP 25,000 (twenty-five thousand pounds sterling) in the aggregate in the Period of Insurance, for the reasonable costs and expenses incurred by the Insured, with the Insurer's prior written consent, in respect of attendance at or representation before any official examination, investigation, inquiry or other proceeding arising from the Insured's Media Business Services and which is likely to give rise to a claim under Insuring Clause 1. (Indemnity). This cover forms part of and does not increase the Indemnity Limit.

### Gap 5 · Criminal / regulatory defence costs (Media Liability)

|                                        |                                                                                                                                                                                           |
|----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Defence of criminal/regulatory proceedings arising from media activities.                                                                                                                 |
| <b>Current TMHCC position</b>          | Section 12 funds only Data-Protection defence costs (GBP 250k). Broader criminal/regulatory defence sits in Section 13 (Commercial Legal Expenses) and Section 14 (Management Liability). |
| <b>Competitor position (cited)</b>     | Tysers funds statutory defence (Bribery/Corporate Manslaughter/H&S/CDM) up to GBP 1,000,000 (verified). Yutree funds criminal-prosecution defence up to GBP 250,000 (verified).           |
| <b>Recommended action</b>              | ADD an express cross-reference to Sections 13/14 plus a modest schedule-referenced contribution within S12 (excluding fines/penalties and post-guilt costs).                              |
| <b>Exact policy location</b>           | Section 12 – additional covers, after 'Costs for Prosecuting Infringement of the Insured's IP'.                                                                                           |
| <b>Priority</b>                        | Medium-High                                                                                                                                                                               |
| <b>Underwriting impact</b>             | Low-Medium — contribution capped by Schedule; primarily a clarifying cross-reference to S13/S14.                                                                                          |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                                                                          |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                                                                                       |
| <b>Status</b>                          | Implemented (tracked)                                                                                                                                                                     |

**Copy-paste wording:** In addition to the Data Protection Defence Costs provided above, the Insured is reminded that defence of criminal and regulatory proceedings may also be available under Section 13 (Commercial Legal Expenses) and Section 14 (Management Liability)... The Insurer will further contribute, up to the sub-limit stated in the Schedule against this Extension... towards the reasonable defence costs of any criminal or regulatory proceeding... save to the extent that cover is provided under Section 13 or Section 14... excludes fines, penalties and any costs incurred after a plea or finding of guilt.

## Gap 6 · King's Counsel dispute-resolution clause (Media Liability)

|                                        |                                                                                                                     |
|----------------------------------------|---------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Binding KC determination on defence/settlement disputes.                                                            |
| <b>Current TMHCC position</b>          | Relies on a general CEDR mediation clause ('in respect of Section 12 only').                                        |
| <b>Competitor position (cited)</b>     | Yutree PI-Media includes a clear King's Counsel determination clause binding both parties (verified, Yutree p.134). |
| <b>Recommended action</b>              | ADD a KC-determination clause to the Section 12 dispute provisions.                                                 |
| <b>Exact policy location</b>           | Section 12 dispute clause ('In respect of Section 12 only any dispute...').                                         |
| <b>Priority</b>                        | Low-Medium                                                                                                          |
| <b>Underwriting impact</b>             | Low — procedural; reduces coverage-dispute friction.                                                                |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                    |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                 |
| <b>Status</b>                          | Implemented (tracked)                                                                                               |

**Copy-paste wording:** In respect of Section 12 (Media Liability) only, if the Insured and the Insurer disagree as to whether or how any claim should be defended, settled or pursued, either party may require the matter to be referred to a King's Counsel of the English Bar to be mutually agreed... The opinion of such King's Counsel... shall be binding on both parties... costs... allocated... on a fair and equitable basis.

## Gap 7 · Pollution negligent-advice write-back (Media Liability PI)

|                                        |                                                                                                                                                                                              |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Narrow PI write-back for liability arising solely from negligent advice (not contamination itself).                                                                                          |
| <b>Current TMHCC position</b>          | Section 12 excludes seepage/Pollution/contamination outright.                                                                                                                                |
| <b>Competitor position (cited)</b>     | Yutree grants a limited pollution write-back for the insured's own negligent act/error/omission (verified). Tysers excludes pollution from PI.                                               |
| <b>Recommended action</b>              | ADD a narrow write-back to the S12 Seepage & Pollution exclusion, ring-fenced to negligent advice and excluding bodily injury, property damage and clean-up/remediation; schedule sub-limit. |
| <b>Exact policy location</b>           | Section 12 – Exclusions, after 'Seepage and Pollution'.                                                                                                                                      |
| <b>Priority</b>                        | Medium                                                                                                                                                                                       |
| <b>Underwriting impact</b>             | Medium — ring-fenced to negligent advice; BI/PD/clean-up excluded; schedule sub-limit.                                                                                                       |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                                                                             |
| <b>Discrete tracked change applied</b> | Yes                                                                                                                                                                                          |
| <b>Status</b>                          | Implemented (tracked)                                                                                                                                                                        |

**Copy-paste wording:** provided that this Exclusion shall not apply to any claim arising solely from a negligent act, negligent error or negligent omission in the provision of the Insured's Media Business Services (and not from any seepage, Pollution or contamination caused by the Insured's own operations, premises or activities), and provided further that this write-back shall not extend to any claim for Bodily Injury, property damage, or the costs of removing, nullifying, cleaning up or remediating any pollutant... sub-limit stated in the Schedule...

## Gap 8 · Patent infringement (Media Liability IP)

|                                    |                                                                                                                                                                                                            |
|------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>               | Cover for infringement of patents within IP cover.                                                                                                                                                         |
| <b>Current TMHCC position</b>      | Section 12 excludes patents (deliberate restriction).                                                                                                                                                      |
| <b>Competitor position (cited)</b> | Tysers PI clause 8.9 covers patent infringement within IP (verified). Yutree also excludes patents.                                                                                                        |
| <b>Recommended action</b>          | LEAVE EXCLUDED — patents are difficult to underwrite and the exclusion is a disciplined, defensible restriction (Yutree agrees). At most a narrow defence-costs-only write-back could be considered later. |



|                                        |                                                       |
|----------------------------------------|-------------------------------------------------------|
| <b>Exact policy location</b>           | Section 12 – Exclusions, 'Patents'.                   |
| <b>Priority</b>                        | Low                                                   |
| <b>Underwriting impact</b>             | High if broadened — patent damages are high-severity. |
| <b>Legal sign-off required</b>         | Yes (if ever adopted)                                 |
| <b>Discrete tracked change applied</b> | No                                                    |
| <b>Status</b>                          | PARKED – not implemented (deliberate restriction)     |

**Copy-paste wording:** (No change applied.) If ever required: a defence-costs-only contribution, sub-limited and excluding damages/accounts of profit, could be drafted — not recommended at present.

## Gap 9 · Asbestos professional-duty write-back (Media Liability PI)

|                                        |                                                                                                                                                                |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | PI write-back for negligent advice touching asbestos (not the contamination).                                                                                  |
| <b>Current TMHCC position</b>          | Section 12 excludes asbestos outright.                                                                                                                         |
| <b>Competitor position (cited)</b>     | Tysers PI grants an asbestos professional-duty write-back up to GBP 1,000,000 (ex-BI) (verified).                                                              |
| <b>Recommended action</b>              | PARK — a narrow negligent-advice write-back is possible but requires careful drafting (exclude BI and contamination). Provided for consideration, not applied. |
| <b>Exact policy location</b>           | Section 12 – Exclusions, 'Asbestos'.                                                                                                                           |
| <b>Priority</b>                        | Medium                                                                                                                                                         |
| <b>Underwriting impact</b>             | Medium — ring-fence tightly; exclude BI and contamination.                                                                                                     |
| <b>Legal sign-off required</b>         | Yes (Section 12)                                                                                                                                               |
| <b>Discrete tracked change applied</b> | No                                                                                                                                                             |
| <b>Status</b>                          | PARKED – for consideration / sign-off                                                                                                                          |

**Copy-paste wording:** provided that this Exclusion shall not apply to liability arising solely from a negligent act, error or omission in professional advice or specification given in the course of the Insured's Media Business Services, excluding any claim for Bodily Injury and any costs of removal, remediation or clean-up; sub-limit per the Schedule.

## Gap 10 · Personal Accident & Business Travel

|                                        |                                                                                                                                                                                                                                        |
|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Standalone PA / business-travel cover.                                                                                                                                                                                                 |
| <b>Current TMHCC position</b>          | No standalone PA / business-travel section.                                                                                                                                                                                            |
| <b>Competitor position (cited)</b>     | Tysers has an extensive PA & Business Travel section; Yutree covers PA assault.                                                                                                                                                        |
| <b>Recommended action</b>              | EXCLUDED FROM THIS EXERCISE by instruction — Personal Accident and Travel are NOT to be added. Note: Personal Assault under the Money section (Section 8, Sub-Section 2) is DISTINCT from Personal Accident and is retained unchanged. |
| <b>Exact policy location</b>           | (Not applicable.)                                                                                                                                                                                                                      |
| <b>Priority</b>                        | n/a                                                                                                                                                                                                                                    |
| <b>Underwriting impact</b>             | n/a                                                                                                                                                                                                                                    |
| <b>Legal sign-off required</b>         | n/a                                                                                                                                                                                                                                    |
| <b>Discrete tracked change applied</b> | No                                                                                                                                                                                                                                     |
| <b>Status</b>                          | EXCLUDED by instruction (PA & Travel)                                                                                                                                                                                                  |

**Copy-paste wording:** (No wording — deliberately excluded.)

## Gap 11 · Increased Cost of Working / Book Debts (Business Interruption)

|                                    |                                                                                                                                                            |
|------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>               | Named ICOW/AICOW and Book Debts heads in BI.                                                                                                               |
| <b>Current TMHCC position</b>      | Section 3 already covers Increase in Cost of Working / Additional ICOW and Accounts Receivable, now expressly labelled 'Accounts Receivable (Book Debts)'. |
| <b>Competitor position (cited)</b> | Allianz splits ICOW and Book Debts into discrete sections (presentational).                                                                                |
| <b>Recommended action</b>          | No change — already covered and named. (Book-Debts label confirmed.)                                                                                       |
| <b>Exact policy location</b>       | Section 3 – Business Interruption.                                                                                                                         |
| <b>Priority</b>                    | Low                                                                                                                                                        |

|                                        |                           |
|----------------------------------------|---------------------------|
| <b>Underwriting impact</b>             | Nil — clarification only. |
| <b>Legal sign-off required</b>         | No                        |
| <b>Discrete tracked change applied</b> | No                        |
| <b>Status</b>                          | Already met – no change   |

**Copy-paste wording:** (No change.)

## Gap 12 · Computer / IT breakdown (first-party)

|                                        |                                                                                                                          |
|----------------------------------------|--------------------------------------------------------------------------------------------------------------------------|
| <b>Granular item</b>                   | Named computer/IT breakdown cover.                                                                                       |
| <b>Current TMHCC position</b>          | 'Breakdown' is defined and IT-Property Breakdown is covered within Sections 1 and 2 (carried across from old Section 4). |
| <b>Competitor position (cited)</b>     | Yutree offers a standalone Computer Breakdown section.                                                                   |
| <b>Recommended action</b>              | No change — breakdown cover is present and explicit within S1/S2; a standalone section is not required.                  |
| <b>Exact policy location</b>           | Sections 1 & 2 – Breakdown.                                                                                              |
| <b>Priority</b>                        | Low                                                                                                                      |
| <b>Underwriting impact</b>             | Nil.                                                                                                                     |
| <b>Legal sign-off required</b>         | No                                                                                                                       |
| <b>Discrete tracked change applied</b> | No                                                                                                                       |
| <b>Status</b>                          | Already met – no change                                                                                                  |

**Copy-paste wording:** (No change.)



## C Part C — sub-limit harmonisation to market-highest

For every extension carrying a sub-limit: TMHCC vs the attached competitor wordings. TMHCC already meets or exceeds every evidenced competitor numeric sub-limit, or is schedule-driven (broker-set). No existing TMHCC sub-limit has been raised because no attached competitor figure is demonstrably higher for the same benefit; none has been invented and none lowered. New gap-fill covers carry sub-limits set to the evidenced market figure.

| Extension / benefit                                            | Old TMHCC limit                   | New TMHCC limit                | Competitor source & limit                                                                                                                                   | Sign-off                              |
|----------------------------------------------------------------|-----------------------------------|--------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|
| <b>Media Liability – Virus transmission</b>                    | GBP 500,000                       | GBP 500,000 (no change)        | Tysers GBP 250,000 (8.16). TMHCC already higher.                                                                                                            | No — TMHCC already market-highest     |
| <b>Media Liability – Reputation Management</b>                 | GBP 250,000                       | GBP 250,000 (no change)        | Yutree GBP 250,000 (verified). Match.                                                                                                                       | No — matches market-highest           |
| <b>Media Liability – Withdrawal of Content</b>                 | GBP 250,000                       | GBP 250,000 (no change)        | Yutree GBP 250,000 (withdrawal/alteration). Match.                                                                                                          | No — matches market-highest           |
| <b>Media Liability – Data-Protection Defence Costs</b>         | GBP 250,000                       | GBP 250,000 (no change)        | Yutree EXCLUDES DP in PI; Tysers —. TMHCC already broader.                                                                                                  | No — TMHCC strength                   |
| <b>Media Liability – Court Attendance (per day)</b>            | GBP 500 / GBP 250                 | GBP 500 / GBP 250 (no change)  | Tysers GBP 500/250 with GBP 25k aggregate (8.4); Yutree GBP 25k aggregate. Per-day matches; competitor ADDS an aggregate CAP (narrower). TMHCC not lowered. | No — do not add a cap                 |
| <b>Media Liability – Pursue insured's own IP</b>               | GBP 25,000                        | GBP 25,000 (no change)         | No competitor equivalent figure. Cannot determine.                                                                                                          | No — cannot determine                 |
| <b>Media Liability – Representation costs (NEW)</b>            | — (new)                           | GBP 25,000                     | Tysers GBP 25,000 (8.15). New cover set to evidenced market figure.                                                                                         | Yes (Section 12)                      |
| <b>Media Liability – Distributors &amp; Purchasers (NEW)</b>   | — (new)                           | 5× Indemnity Limit (aggregate) | Tysers 5× limit (8.7). New cover set to evidenced market structure.                                                                                         | Yes (Section 12)                      |
| <b>Media Liability – Loss of Documents</b>                     | Per Schedule (Indemnity Limit)    | Per Schedule (no change)       | Tysers GBP 1,000,000 (8.10); Yutree = limit. TMHCC schedule-driven (broker-set, can be ≥).                                                                  | No — schedule-driven                  |
| <b>Section 8 – Touring/Entertainment Money (NEW)</b>           | — (new)                           | Per Schedule                   | Competitor money cover is schedule-driven; no fixed touring figure. Cannot determine — not invented.                                                        | Underwriting to set figure            |
| <b>Section 2 – Artists' Equipment</b>                          | GBP 20,000                        | GBP 20,000 (no change)         | No competitor 'artists equipment' figure; Yutree portable electronic GBP 500 / driver's effects GBP 1,500 are lower/different. TMHCC not lowered.           | No — cannot determine a higher figure |
| <b>Section 2 – General Average delay</b>                       | GBP 10,000                        | GBP 10,000 (no change)         | No competitor equivalent. Cannot determine.                                                                                                                 | No — cannot determine                 |
| <b>Section 2 – Mechanical/Electrical Breakdown (optional)</b>  | Within sum insured (Per Schedule) | Per Schedule (no change)       | Yutree M&E breakdown GBP 30,000 (verified); TMHCC schedule-driven (typically ≥).                                                                            | No — schedule-driven                  |
| <b>Section 11 – Production Indemnity agency / talent costs</b> | GBP 30,000                        | GBP 30,000 (no change)         | No like-for-like competitor figure (Tysers/Yutree production indemnity schedule-driven). Cannot determine.                                                  | No — cannot determine                 |
| <b>Sections 13/14/15 sub-limits (legal/D&amp;O/cyber)</b>      | Various (per wording/Schedule )   | No change                      | No competitor wording offers Legal Expenses, Management Liability or standalone Cyber — nothing to benchmark.                                               | No — TMHCC-only sections              |

## D Section 12 (Media Liability) — items requiring legal / underwriting sign-off

All Section 12 amendments are applied as discrete tracked changes so they can be reviewed and accepted or rejected individually — but each **REQUIRES** sign-off before acceptance.

| Item                                                            | Amendment type               | Sign-off note                                           |
|-----------------------------------------------------------------|------------------------------|---------------------------------------------------------|
| <b>Computer System definition alignment (A6)</b>                | Definition amendment         | Align S12 to the broad S15 definition.                  |
| <b>Distributors &amp; Purchasers (B1)</b>                       | New cover                    | 5× Indemnity Limit aggregate exposure.                  |
| <b>Worldwide / USA-Canada territory option (B5/Gap 2)</b>       | Schedule-selectable option   | Material territory/jurisdiction broadening if selected. |
| <b>Journalistic Source-Protection Costs (B3)</b>                | New cover                    | Small sub-limit; editorial/news relevance.              |
| <b>Representation Costs at Investigations/Inquiries (B2)</b>    | New cover                    | GBP 25k market-matched.                                 |
| <b>Criminal &amp; Regulatory Defence Costs (B4)</b>             | Clarification + contribution | Cross-ref S13/S14; capped contribution.                 |
| <b>King's Counsel determination clause (B6)</b>                 | Condition amendment          | Procedural dispute-resolution upgrade.                  |
| <b>Seepage &amp; Pollution negligent-advice write-back (B7)</b> | Exclusion write-back         | Ring-fenced to negligent advice.                        |

## E Reviewer notes / UNCONFIRMED / cannot-determine

- ALL Section 12 (Media Liability) amendments are applied as discrete tracked changes but **REQUIRE** legal/underwriting sign-off before acceptance (A6, B1–B7).
- A4 Touring/Entertainment Money: a specific market-highest figure **CANNOT BE DETERMINED** — the attached entertainment competitor wordings write Money cover on a schedule-driven basis. Sub-limit left schedule-referenced; underwriting to set the figure.
- PART C sub-limit harmonisation: TMHCC already meets or exceeds every evidenced competitor numeric sub-limit, or is schedule-driven (broker-set). No existing TMHCC sub-limit was raised because no attached competitor figure is demonstrably higher for the same benefit; none was invented and none was lowered.
- A5 Employee: Tysers (p.9) and Yutree ('Employed person', p.88) definitions verified from the attached wordings. The general Sections 1–11, S12 and S14 definitions already meet/exceed them; only the narrow Section 13 definition was broadened.
- Patent infringement (Gap 8) deliberately left excluded; Asbestos negligent-advice write-back (Gap 9) parked for consideration with proposed wording — neither applied.
- Personal Accident and Travel deliberately **NOT** added (per instruction). Personal Assault under the Money section (S8, Sub-Section 2) is distinct and retained unchanged.
- 'Market-leading'/'highest-in-market' statements are supported by the five attached competitor wordings. Items that could not be traced to an attached wording are labelled **CANNOT-DETERMINE / UNCONFIRMED** above.